

Unit -1

Criminal Procedure

Criminal procedure sets forth the rules and regulations governing criminal proceedings, from investigation to final sentencing and identifying criminal liability.

According to Black's Law Dictionary, criminal procedure is: "the rules governing the mechanisms under which crimes are investigated, prosecuted, adjudicated, and punished" and "includes the protection of accused persons' constitutional rights"

Criminal procedure is the adjudication process of the criminal law. While criminal procedure differs dramatically by jurisdiction, the process generally begins with a formal criminal charge with the person on trial either being free on bail or incarcerated, and results in the conviction or acquittal of the defendant. Criminal procedure can be either in form of inquisitorial or adversarial criminal procedure.

Purpose

The purpose of criminal liability in law serves two important objectives. First, it ensures fairness among all parties engaged in criminal proceedings. Secondly, it safeguards individuals' rights to due process and equal protection under the law.

Functionaries of the Court

The criminal justice system in India is a complex framework involving various key functionaries who play pivotal roles in maintaining law and order, ensuring justice, and upholding the rule of law. These functionaries include the police, prosecutors, defence counsel, and prison authorities.

The Police

1 Function and Organization

The police force is instrumental in the prevention and detection of crime. Each State Government establishes its own police force, which is formally enrolled and consists of a varying number of officers and men as determined by the State Government. The Director-General of

Police (DGP) oversees the entire police administration in a state, while the District Superintendent of Police (DSP) manages the police administration in each district under the guidance of the District Magistrate, usually the Collector of the district.

2 The Police Act, 1861

The Police Act of 1861 established the foundation for the organization and regulation of police forces in India. The Act outlines the constitution of the police force, its powers, duties, and the appointment of police officers. Every police officer, other than high-ranking officials like the Inspector-General, receives a certificate granting them the powers, functions, and privileges of a police officer, which must be returned if they cease to hold their position.

3 Other Police Acts

The Police Act of 1888 allows the Central Government to create special police districts covering parts of multiple states with the concurrence of the concerned State Governments. The Police Act of 1949 established a police force for Union Territories, following the 1861 Act's pattern.

4 Supreme Court Interventions

Reorganization of the police has been a persistent issue, addressed by various commissions and committees. Due to inaction from the governments, the Supreme Court, in *Prakash Singh v. Union of India*, issued directives to reform police structures, emphasizing accountability and efficiency.

5 Delhi Special Police Establishment Act, 1946

This Act led to the creation of a special force for investigating specific offences in Union Territories and allowed its jurisdiction to extend to other parts of India with state concurrence. The Central Bureau of Investigation (CBI), established under this Act, often undertakes investigations of significant public interest due to its perceived impartiality and independence.

6 Central Vigilance Commission Act, 2003

To address corruption, especially at higher administrative levels, the Central Vigilance Commission Act, 2003, reconstituted the Central Vigilance Commission, ensuring its operational autonomy and protection from undue interference.

7 Police Powers under the Code

THE BNSS endows police officers with specific powers such as arrest, search, and investigation. Station-house officers (SHOs) have extensive responsibilities in detecting, investigating, and preventing crimes. Superior officers can exercise the same powers across larger jurisdictions, emphasizing the central role of police stations in crime management.

Expansion of the Powers of the Police

The BNSS empowers police to maintain public order, prevent crimes, and conduct investigations while safeguarding citizens from misuse of force, illegal detentions, and torture. The Supreme Court has set guidelines to curb arbitrary use of police power. The BNSS proposes changes to detention procedures and police custody, raising concerns.

- **Procedure of Police Custody:** The CrPC limits police custody to 24 hours. It is extendable to 15 days by a Magistrate and further to 60 or 90 days for judicial custody depending on the offense. The BNSS proposes a fragmented 15-day police custody over 40/60 days, potentially complicating bail and custody procedures.
- **Powers of Detention Amended:** BNSS retains the 24-hour production before a Magistrate. However, it adds that police can detain individuals resisting arrest or ignoring officer directions. The Bill lacks a clear timeframe for such detentions, calling for guidelines.
- **Use of Handcuffs:** The BNSS allows handcuffs for habitual offenders or serious crime suspects. This contradicts Supreme Court rulings deeming handcuffs inhumane without judicial consent. Recommendations include limiting handcuff use to high-risk scenarios.

2. Public Prosecutors

1 Role and Responsibilities

Public Prosecutors (PPs) represent the state in criminal trials, advocating on behalf of society against accused individuals. Their primary duty is to conduct prosecutions in sessions and higher courts. They are also involved in criminal appeals and revisions, providing legal advice to police and other government departments on prosecution matters.

2 Appointment and Qualifications

Public Prosecutors are appointed under Section 18 of the BNSS, with eligibility requiring a minimum of seven years of legal practice. Appointments for High Courts and districts involve consultation with respective high court authorities and the preparation of panels by District Magistrates.

3 Hierarchy and Special Appointments

Public Prosecutors operate within a hierarchical framework, from Assistant Public Prosecutors (APPs) in Magistrates' Courts to PPs and Additional Public Prosecutors (Addl. PPs) in higher courts. The Central and State Governments can appoint Special Public Prosecutors for specific cases, requiring at least ten years of legal practice.

4 Independence and Reforms

The Law Commission's 14th Report emphasized the need for a separate, independent prosecution agency distinct from the police to ensure impartial and effective legal scrutiny. The Supreme Court has reinforced this by disapproving appointments that compromise the independence of the prosecution, advocating for a dedicated cadre of prosecutors.

5 Code of Conduct and Ethical Duties

While the BNSS does not explicitly outline the conduct expected of prosecutors, the principles are well-established. Prosecutors must aim to present all available evidence, whether for or against the accused, ensuring the court can determine the truth impartially. Their role is not to secure convictions at all costs but to facilitate justice.

3. Defence Counsel

1 Right to Defence

Every accused person has the right to be defended by a legal practitioner of their choice, as per Section 341 of the BNSS. This right is fundamental to ensuring a fair trial, especially under an adversarial legal system where the state prosecutes, and the accused must mount a defence.

2 Legal Aid and Indigent Accused

Recognizing that many accused persons may lack the means to hire a defence counsel, THE BNSS and the Constitution provide for free legal aid. Section 341 mandates that if an accused in a Sessions trial cannot afford a lawyer, the court must assign one at the state's expense. The Supreme Court has extended this to all cases where the offence could lead to imprisonment, ensuring no one is denied a fair trial due to poverty.

3 Legal Aid Schemes

Various schemes provide legal aid, including those by State Governments, Bar Associations, and Legal Aid and Advice Boards. The Legal Services Authorities Act, 1987, further institutionalizes legal aid, ensuring broad access to legal representation for the needy.

4. Prison Authorities and Correctional Services

1 Role and Legal Framework

Prison authorities manage the detention of undertrial prisoners and the imprisonment of convicted individuals. The Prisons Act, 1894, and other relevant laws outline the establishment, administration, and regulation of prisons.

2 Rehabilitation and Probation

The BNSS encourages rehabilitation and probation over imprisonment where possible. Sections 401 and 420 promote the use of probation for first-time and youthful offenders, directing courts to consider non-custodial sentences.

3 Correctional Services

Beyond mere confinement, correctional services aim to rehabilitate offenders, preparing them for reintegration into society. Various Acts, such as the Probation of Offenders Act, 1958, and the Borstal Schools Acts, support this rehabilitative approach.

Salient Features of BNSS

The Bharatiya Nagarik Suraksha Sanhita, 2023 ('BNSS') was enacted on December 25, 2023, with the stated objective of repealing pre-independence, 19th century colonial-era criminal laws.

The BNSS aims to provide for a faster and more efficient justice system to address the issues of delay in delivery of justice due to complex procedures, large pendency of cases in courts, low conviction rates, low level of use of technology in legal system, delays in investigation and inadequate use of forensics.

The BNSS 2023 modernizes criminal justice procedures with mandatory forensic investigations, stricter timelines for judicial processes, enhanced police powers with safeguards, and comprehensive revisions to bail and detention rules.

Changes with Respect to Registration of First Information Reports ('FIRs')

FIRs can now be registered via electronic communication. It will be taken on record on being signed within three days, by the person giving such information.

BNSS introduces preliminary inquiry prior to registration of FIR. Preliminary inquiry is limited to cognizable offences punishable with imprisonment of three years or more but less than seven years. The same is to be carried out in a time-bound manner – within 14 days from receipt of information.

Lastly, it is mandatory for police to register a FIR where information regarding commission of a cognizable offence is received, irrespective of whether it has jurisdiction or not ('Zero FIR'). Once the Zero FIR is registered, the concerned police station can transfer such FIR to the police station which has jurisdiction to investigate the case.

ii. Additional Powers for Attachment and Forfeiture of Property

Section 107 of BNSS gives Magistrate powers to attach property identified as 'proceeds of crime'. The Magistrate may upon an application of an investigating officer giving reasons to believe that the property is derived from a criminal activity, pass the following orders:

- a. Direct attachment of the property found to be 'proceeds of crime' after hearing all parties concerned;
- b. Pass an ex parte interim order attaching property if the Magistrate is of the opinion that issuing notice to the owner of the property for attachment will defeat the object of the attachment or seizure; and
- c. Upon determination that the property in question falls under proceed of crime, the Magistrate will direct the District Magistrate to rateably distribute the property amongst those who were affected by the crime.

Section 86 of BNSS provides that the Court, upon a written request from an officer not below the rank of Superintendent of Police or Commissioner of Police, can initiate the process of requesting assistance from a Court or authority in a contracting State for attachment or forfeiture of a proclaimed offender. The intention behind this provision seems to be either to secure the presence of fugitives or confiscate properties of fugitives who are evading summons/investigation/trial

and have properties outside the country.

iii. Adherence with Timelines

The BNSS endeavours to address delays in investigation and trial by providing timelines for completing certain proceedings under the BNSS such as:

Proceedings	Time-period
committal	Within 90 days from the date of taking cognizance which may be extended by a period not exceeding 18 days.

supply of police report & documents	Within 14 days from the date of production or appearance of accused
framing of charges (trial before a Court of Session)	Within 60 days from the first date of hearing on charges
Judgment (trial before a Court of Session)	Within 30 days from completion of arguments which can be extended by 45 days only by giving specific reasons

In addition, trial or inquiry will be on a day-to-day basis and not more than two adjournments will be granted.

iv. Changes with Respect to Provisions Pertaining to Arrest

No significant improvements have been made with respect to the rights of arrestee except that now an arrestee can inform any person of the fact of his arrest, other than just a friend and relative, which could also include his lawyer. As regards the arrest of a woman, the BNSS places an obligation upon the police to inform the relatives of a woman where she is being held and information about her arrest.

The BNSS specifically allows handcuffing of certain categories of offenders like repeat, habitual offenders etc.

v. Use of Electronic Mode at Stages of Investigation, Inquiry and Trial

One of the most significant features of BNSS is the introduction of electronic communication and audio-video electronic means for various procedures under the BNSS. In line with this objective, the BNSS has introduced new definitions which define terms such as "audio-video electronic" and "electronic communication".

Summons to witnesses and accused can also be served by electronic communication. The form of electronic communication and manner of serving such summon in electronic communication is to be provided for by the State Government by way of rules.

Statements can also be recorded by the investigating office by way of audio-video means. Similarly, it is also permissible for the

investigating authority to supply documents, such as the police report etc. in electronic form.

Search and seizure can be recorded by audio-video means including recording of preparation of seizure list. A search without warrant is also to be recorded by audio-video means. The recording is required to be forwarded to the Magistrate without delay.

Section 530 of the BNSS provides that all trials, inquiries and proceedings including appellate proceedings may be held in electronic mode.

vi. Production of Devices Containing Digital Evidence

A Court or an officer in charge of a police station can compel production of communication devices which are likely to contain digital evidence. This provision may give the investigating authority unrestricted use of electronic device in complete breach of right to privacy as well as privilege.

vii. Amendment in Terms of *Satender Kumar Antil* CBI

Section 190 of BNSS, in light of the judgment in *Satender Kumar Antil (supra)*, provides that when a charge-sheet is filed, an accused is not required to be taken into custody. The provision states that if the person is not arrested during investigation, the police officer will take security from such person for his appearance before the Magistrate. It further provides that the Magistrate to whom such report is forwarded will not refuse to accept the same on the ground that the accused is not taken in custody.

viii. Police Custody

Section 187 of BNSS provides that police custody of 15 days (unless extended) may be taken either all at once or in a staggered manner. It empowers the police to seek custody when it is sought in tranches for an extended period which may be at any time during the initial forty days or sixty days (as the case may be).

ix. Rights of Victim

The BNSS provides the following rights to victims, which have till date only been provided by judgments of Courts:

- a. Obligation on police to inform the victim of the progress of the investigation within a period of 90 days;
- b. Obligation on police to supply police report and other documents to the victim (if represented by an advocate);
- c. Withdrawal of prosecution will only be allowed after hearing the victim;
- d. A witness protection scheme to be laid down by the State Government; and
- e. Victim compensation schemes which have largely been administrative schemes (such as the Nirbhaya Scheme) are to be given at the discretion of State Governments.

x. Applicability of BNSS

Section 531 of the BNSS provides that if there is any appeal, application, trial, inquiry, or investigation pending before the date on which BNSS comes into force, then it will be disposed of, continued, held or made, in accordance with the provisions of the Code of Criminal Procedure, 1973.

Definition and Classification of offences under BNSS

According to Sec2 (24) "offence".—Except in the Chapters and sections mentioned in sub-clauses (a) and (b), the word "offence" means a thing made punishable by this Sanhita, but—

(a) in Chapter III and in the following sections, namely, sub-sections (2), (3), (4) and (5) of section 8, sections 9, 49, 50, 52, 54, 55, 56, 57, 58, 59, 60, 61, 119, 120, 123, sub-sections (7) and (8) of section 127, 222, 230, 231, 240, 248, 250, 251, 259, 260, 261, 262, 263, sub-sections (6) and (7) of section 308 and sub-section (2) of section 330, the word "offence" means a thing punishable under this Sanhita, or under any special law or local law; and (b) in sub-section (1) of section 189, sections 211, 212, 238, 239, 249, 253 and sub-section (1) of section 329, the word "offence" shall have the same meaning when the act punishable under the special law or local law is punishable under such